

25SMCV02224 25SMCV02224

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-09

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This is a demurrer in a legal malpractice action. There is no opposition. The thrust of the demurrer is that plaintiff here is suing defendants for malpractice in a criminal action in which plaintiff was convicted. The rule is that absent pleading and proving actual innocence, such an action will not lie. Because of that, the malpractice action is barred. The other causes of action are just other ways of saying "malpractice" and fail for the same reason. Therefore, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. The lack of an opposition suggests that plaintiff will not, or cannot, allege and prove actual innocence.